

[doc. web n. 9920145]

Provision of July 6, 2023

Register of Provisions

n. 287 of July 6, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD to Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor
Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

Rapporteur Attorney Guido Scorza;

PREMISE

1. Introduction.

With a complaint submitted to this Authority pursuant
to Article 77 of the Regulation, the publication on the
online notice board of the Municipality of
Aviano (hereinafter "Municipality") of determination No. XX
of XX concerning "assignment of incentives
for individual productivity - commitment and

liquidation of the year XX” was contested – with attached the list of names and the respective compensations of about 70 employees (Annex A payment for productivity year 2018 amounts of productivity incentives to be paid to employees - XX). Subsequently, on XX, with act No. XX, the names and amounts related to the assignment of new horizontal economic progressions for some employees of the Municipality were published, (“selections for the assignment of new horizontal progressions starting from XX”).

2. The investigative activity.

With note of XX (prot. n. XX), the Municipality, in response to a request for information from the Guarantor (note prot. n. XX of XX), stated, in particular, that:

- “to respond accurately to the observations raised by this Authority, it is necessary to illustrate the process of formation and publication of the aforementioned documents, which occurs in accordance with the provisions of current legislation and the Regulation governing the electronic notice board, adopted by this Municipality with Municipal Council Resolution No. XX of XX”;
- “the publication of the aforementioned documents is certainly a data processing activity, but the Entity has established an organization such that the operator responsible for publication performs a mere executive operation, according to the duration and methods required, of an act already compliant with the required standards, including those related to privacy”;
- “specifically, both documents were drafted by the Human Resources Service, an office incorporated within the organizational structure of the Inter-Municipal Territorial Union (U.T.I.) of “Livenza Cansiglio-Cavallo”, which was established pursuant to regional law No. 26/2014, effective from 04/15/2016, among the Municipalities of Aviano (the most populous Municipality), Budoia, and Caneva, as can also be inferred from the premise of determination No. XX. The U.T.I. is an entity with its own legal personality, represented legally by its President, elected by the Assembly from among its members, who, as stated in Article 8 of the Statute: “(...) exercises, according to the times referred to in the subsequent Article 32, the municipal functions in the following areas (...) management of personnel and coordination of the general organization of the administration and control activities...” ;
- “this Entity has therefore requested the legal basis for the processing concerning the content of the acts in question from the Human Resources Service of the U.T.I. and has acquired, first informally, and then with note No. XX of XX the documentation that is attached”;
- “as for the publication period [...] it is communicated [...that] determination No. XX was

published on the electronic notice board from XX to XX; act No. XX was published on the electronic notice board from XX”.

From the attached documentation (note prot. n. XX of XX), it emerges that the Human Resources Service of the Inter-Municipal Territorial Union Livenza-Cansiglio-Cavallo has represented that:

- “Legislative Decree 150/2009 and subsequent amendments strengthen the provisions regarding transparency in public administrations, for example, Article 21 of Law No. 69 provides the obligation for the administrations to publish on their own website the annual salaries, the curricula vitae, the email addresses and the professional phone numbers of the directors and municipal and provincial secretaries, as well as to make public, using the same system, the absence and greater presence rates of the staff, distinguished by offices of managerial level”;
- “Article 27 of the [Decentralized Territorial Collective Agreement] CCDIT, signed on XX, which regulates the selections for the assignment of new horizontal progressions, provides that [...] the rankings are approved by the Head of the Human Resources Management Service by December 31 of the reference year and are published in the Official Bulletin”.

With note dated XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, concerning the alleged violations of Articles 5, paragraph 1, letters a) and c) and 6, paragraph 1, letters c) and e) and paragraphs 2 and 3, letter b) of the Regulation, as well as Article 2-ter, paragraphs 1 and 3 of the Code, (in the text prior to the amendments made by Legislative Decree No. 139 of October 8, 2021) inviting the aforementioned holder to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With note dated XX, the Municipality submitted a defensive memorandum, stating, in particular, that:

“the entity involved in the alleged violation does not seem to be the Municipality of Aviano, or at least not exclusively, as the ownership of the two measures subject to complaint lies with the Inter-Municipal Territorial Union Livenza Cansiglio Cavallo, an entity with its own legal personality”;

“the Inter-Municipal Territorial Union Livenza Cansiglio Cavallo, hereinafter U.T.I., established pursuant to Regional Law No. 26/2014, exercised autonomously until June 30, 2021, the date of its cessation, the municipal function related to personnel management for all participating municipalities (Aviano, Budoia, and Caneva)”;

“the Municipality of Aviano, like the other two municipalities, while providing for the publication in its own electronic Official Bulletin of some acts of the U.T.I., did not have the authority to verify their contents. In fact, point 7 of Article 12 of the municipal regulation for the discipline of the electronic Official Bulletin (to which the U.T.I. is required to adhere according to Article 35, paragraph 2 of its Statute [...]) states: ‘... Therefore, the subject, office, or body that proposes and/or adopts the act to be published and/or the subject (external or internal) that requests the publication is responsible for the content of the acts published in relation to compliance with the rules for the protection of personal data, including with regard to their dissemination through the publication of the respective acts in the electronic Official Bulletin’”;

“the assessments on the processing carried out and on the notification of the violation must also, if not exclusively, be contested to the U.T.I. to which, in fact, prior to the response given to this Authority, I also turned to acquire the legal basis for the processing concerning the content of the acts in question, which is not within my competence”;

“as for the mere publication of the acts in the online Official Bulletin, [the Municipality] has implemented the following technical and organizational measures pursuant to Articles 25 and 32 of Regulation (EU) No. 2016/679: a municipal regulation on the discipline of the electronic Official Bulletin has been adopted since 2011; - the AdWeb application provided by the Friuli Venezia Giulia Region is used for the publication of the acts within the framework of the agreement for the S.I.A.L. – Information System for Local Authorities, created by INSIEL SpA, which allows the act to be prepared in a mode already suitable for publication, either by excluding from it the attachments containing data that should not be subject to dissemination, or by allowing the publication of attachments containing “minimized” data, based on the assessments of the subject/office or body that adopts the act; the two measures subject to the contested violation have been promptly removed from the Municipality's electronic Official Bulletin”;

“regarding the information concerning the content of the acts subject to contestation, although these are elements within the competence of the U.T.I., the following is communicated: the annex to determination No. XX of XX (productivity) reported the surname, name, and amount of the productivity bonus attributed to some employees of the Municipality; determination No. XX of XX reported the surname, name, economic position held, new economic position assigned, and actual cost of the new progression of some employees of the Municipality”.

Furthermore, during the hearing, pursuant to Article 166, paragraph 6, of the Code, the Municipality represented that (see verbatim prot. n. XX of XX):

- “as a preliminary matter, it is clarified that the ownership of the documents subject to complaint is attributable to an entity other than the Municipality of Aviano, namely the Inter-Municipal Territorial Union Livenza, as can be seen from the letterhead of the aforementioned documents (see determination No. XX)”;
- “this entity, established by regional law No. 26/2014, has its own legal personality and to which certain competencies, including the economic and legal management of the personnel of the municipalities participating in the Union, have been transferred mandatorily”;
- “the two documents subject to publication are adopted by the Union, which is therefore the data controller and not the Municipality”;
- “the Union is thus the infringer regarding the conduct identified by the Guarantor, as the Municipality of Aviano cannot be identified as such, at least not exclusively”;
- “although the Municipality published the two acts on its own website, the formation of the act and the responsibility for it lies with the Union (art. 35, paragraph 2 of the Union's Statute) [...]”;
- in the Municipal regulation concerning the discipline of the electronic notice board, it is defined, in art. 12, point 7, as highlighted in the defensive memoranda, that the office or body proposing and/or adopting the act and the internal or external subject requesting publication is responsible for the content of the acts to be published;
- “in application of art. 12, point 6, of the aforementioned regulation, which provides for appropriate technical measures for compliance with data protection regulations, the use of software that allows the competent official, holder of an organizational position, to select the contents and attachments of the documents to be published”;
- “since the Municipality has therefore made available to the Union the aforementioned software application provided by Friuli Venezia Giulia, the competent official of the Union did not adequately use the tool in question, allowing the publication of attachments containing personal data”;
- “the human resources management function has been transferred to the Union, which should have implemented all necessary measures to ensure that the publication, which should have been carried out at the Municipality's notice board due to competence and concerning personal data related to the employees of the Municipality of Aviano, occurred in compliance with data protection regulations”;
- “as of July 1, 2021, the Union ceased to exist pursuant to art. 2, paragraph 1 of L.R. Friuli Venezia Giulia no. 19/2020; on May 28, 2021, it was replaced by the magnificent Community of Mountain Dolomiti Friulane Cavallo Council, which took over the functions and tasks of the Union”;

- “from checks carried out by the DPO of the Municipality and the Union, the official who prepared the documents had been authorized to process the data but had not complied with the instructions, nor observed the aforementioned municipal regulation - which the Union should have adhered to (pending the adoption of its own regulations, art. 35, paragraph 2 of the Union's Statute) - and the training on data protection organized by the Union, also at the indication of the DPO”;
- “there has been a constant evolution in the procedures by the Municipality of Aviano and a progressive adjustment to data protection regulations, increasing training opportunities for staff, adopting new appropriate technical and organizational measures to prevent similar occurrences in the future”.

3. Outcome of the investigative activity.

3.1 The regulatory framework

The discipline of personal data protection provides that public entities, within the work context, may process the personal data of the data subjects, including data related to special categories, if the processing is necessary, in general, for the management of the employment relationship and to fulfill specific obligations or tasks provided by law or by Union or Member State law (arts. 6, par. 1, lett. c), 9, par. 2, lett. b) and 4 and 88 of the Regulation). The processing is also lawful when it is “necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller” (art. 6, par. 1, lett. e), 2 and 3, and art. 9, par. 2, lett. g), of the Regulation; art. 2-ter of the Code, in the text prior to the amendments made by the d.l. October 8, 2021, no. 139).

European legislation provides that “Member States may maintain or introduce more specific provisions to adapt the application of the rules of [...] the regulation with regard to processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and other measures to ensure lawful and fair processing [...]” (art. 6, par. 2, of the Regulation). In this regard, it is highlighted that the operation of disseminating personal data (such as publication on the Internet) by public entities is permitted only when provided for by a legal norm or, in cases provided for by law, by regulation (cf. art. 2-ter, paragraphs 1 and 3, of the Code, in the text prior to the amendments made by the d.l. October 8, 2021, no. 139).

The data controller is required, in any case, to comply with the principles regarding data protection, among which are “lawfulness, fairness, and transparency” as well as “data minimization,” according to which personal data must be “processed lawfully, fairly, and transparently in relation to the data subject” and must be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed” (art. 5, par. 1, lett. a) and c), of the Regulation).

3.2 The dissemination of personal data.

As evidenced by the documents, as well as by the findings made based on the elements acquired, following the investigative activity and the subsequent evaluations of the Office, the Municipality published on its institutional website resolution no. XX of XX and the resolution that, although indicated as no. XX of XX, actually appears to be no. XX of XX, as confirmed by the Municipality of Aviano (cf. note of XX) and related attachments, containing personal data of its employees. In particular, the delibera n. XX del XX, avente ad oggetto

“attribuzione compensi incentivanti la produttività individuale - impegno e liquidazione annualità XX”, conteneva in allegato l’elenco dei nominativi di circa 70 dipendenti del Comune, con l’indicazione degli specifici compensi percepiti. Analogamente la successiva delibera del XX n. XX, avente ad oggetto “selezioni per l’attribuzione di nuove progressioni orizzontali a decorrere dal XX” riportava numerosi dati personali tra cui i nominativi di circa 30 dipendenti del Comune con gli importi derivanti dall’attribuzione delle progressioni economiche orizzontali.

L’art.32 del d.lgs. 18 agosto 2000, n. 267 “Testo unico delle leggi sull’ordinamento degli enti locali”

prescrive che “le unioni di comuni sono enti locali costituiti da due o più comuni di norma contermini, allo scopo di esercitare congiuntamente una pluralità di funzioni di loro competenza. L'unione ha potestà regolamentare per la disciplina della propria organizzazione, per lo svolgimento delle funzioni ad essa affidate e per i rapporti anche finanziari con i comuni” (cfr. commi 1 e 4).

Sebbene la funzione di gestione delle risorse umane del Comune risulta essere stata “affidata” all’Unione Territoriale Intercomunale Livenza Cansiglio Cavallo (di seguito “Unione”) e nel corso dell’istruttoria il Comune abbia rappresentato di non dover essere considerato l’unico responsabile della vicenda, occorre rilevare, per i profili di protezione dei dati, quanto segue.

L’affidamento all’Unione di funzioni proprie degli Enti che aderiscono alla stessa non può essere ritenuto sufficiente a escludere la responsabilità del Comune nel caso di specie (cfr. art. 4, punto 7 del Regolamento) anche in ragione del fatto che le delibere, all’esito di decisioni assunte dalla Giunta comunale, contenevano determinazioni nei confronti di dipendenti del Comune, che la diffusione dei dati personali è avvenuta sul sito web istituzionale dello

stesso e che la titolarità del trattamento dei dati dei propri dipendenti e collaboratori per la gestione del rapporto di lavoro resta, in ogni caso, in capo all’Ente datore di lavoro (cfr. provvedimento n. 384 del 28 ottobre 2021, doc. web n. 9722661).

Impregiudicata, quindi, la possibilità dell’accertamento di eventuali responsabilità in capo ad altri soggetti a vario titolo coinvolti nel trattamento in questione, l’istruttoria che ha dato origine al presente procedimento è stata avviata nei confronti del Comune (cfr. nota XX, prot. n. XX) in un momento in cui, peraltro, l’Unione era cessata (cfr. quanto dichiarato in atti dal Comune che ha confermato che “a decorrere dal 1° luglio 2021 l’Unione è cessata ai sensi dell’art. 2, comma 1 della L.R. Friuli Venezia Giulia n. 19/2020”).

Contrariamente a quanto sostenuto dal Comune non può essere invocato, per giustificare nel caso di specie la diffusione di dati personali, l’articolo 21, comma 1 della legge n. 69 del 2009, peraltro abrogato dall’art. 53, comma 1, lett. h) del d.lgs. 14 marzo 2013, n. 33, atteso che tale articolo si riferiva esclusivamente alle informazioni riguardanti i compensi percepiti da titolari di incarichi amministrativi di vertice e di incarichi dirigenziali a qualsiasi titolo conferiti.

Diversamente, l’art. 20 del d.lgs. 33 del 2013

“Obblighi di pubblicazione dei dati relativi alla valutazione della performance e alla distribuzione dei premi al personale” stabilisce che le pubbliche amministrazioni “pubblicano i dati relativi all'ammontare complessivo dei premi collegati alla performance stanziati e l'ammontare dei premi effettivamente distribuiti”, prevedendo l'obbligo di indicare esclusivamente “i criteri definiti nei sistemi di misurazione e valutazione della performance per l'assegnazione del trattamento accessorio e i dati relativi alla sua distribuzione, in forma aggregata”, ma non i dati dei compensi accessori percepiti individualmente dai dipendenti.

La finalità di trasparenza perseguita mediante tale previsione, al fine di dare pubblica evidenza dei livelli di selettività e premialità nella distribuzione dei premi e degli incentivi al personale, trova effettività, per espressa scelta del legislatore, attraverso la pubblicazione dei menzionati valori in forma aggregata.

In tale quadro, non possono considerarsi, quindi, pertinenti, con riguardo alla qualità e al contenuto della fonte, le disposizioni del Contratto Collettivo Decentrato Integrativo Territoriale (art.27) che non soddisfano i requisiti della base giuridica richiesti dal Regolamento e dal Codice (art. 6, par. 1, lett. c) ed e) e parr. 2 e 3, lett. b) del Regolamento, nonché art. 2-ter, commi 1 e 3 del Codice, nel testo antecedente alle modifiche apportate dal d.l. 8 ottobre 2021, n. 139 applicabile al caso di specie). Nel quadro di derivazione europea della disciplina di protezione dei dati, infatti, nella prospettiva della certezza del diritto, nonché del principio di non discriminazione, non sono consentiti livelli differenziati di tutela della protezione dei dati personali - né su base territoriale né a livello di singola amministrazione - specie quando, come nel caso di cui trattasi, la materia sia già stata oggetto di bilanciamento e regolazione dal legislatore con disposizioni uniformi a livello nazionale. Ciò considerando altresì che il Regolamento prevede che la base giuridica del trattamento deve essere idonea anche alla luce dell'“ordinamento costituzionale” dello Stato membro (considerando 41 e v. anche Corte Cost. sent. n. 271/2005 in base alla quale la disciplina di protezione dei dati personali rientra fra la materia di competenza esclusiva statale riferita all'“ordinamento civile”), nel rispetto del principio di proporzionalità (art. 6, par. 3, lett. b), del Regolamento).

Per completezza si ricorda che il Garante ha nel

tempo fornito indicazioni in ordine ai presupposti

(e, in the case of these, the specific methods) for the lawful publication of acts and documents containing personal data, including that of employees, specifying, in particular, that it is not lawful to disseminate personal information relating to individual workers, as in the cases of information concerning individual employment contracts, salary treatments, or additional benefits received (cf. par. 6.3 of the "Guidelines on the processing of personal data of workers for the purposes of managing the employment relationship in the public sector" of June 14, 2007, web doc. no. 1417809). Such information, in the absence of an appropriate legal basis, cannot be disseminated or made available to parties outside the administration or to other colleagues not specifically authorized (cf. regarding the non-disclosure to trade unions of additional compensation paid to employees, see Cons. St., Section VII, 09/08/2022, no. 7064, which confirms a previous position of the Guarantor expressed in note no. XX of XX), except for the ordinary forms of accessibility of administrative acts provided for by the legal system (arts. 22 et seq. Law of August 7, 1990, no. 241; d.P.R. April 12, 2006, no. 184; arts. 6, 9, 10, and 86 of the Regulation). The Guarantor has also clarified on numerous occasions that even the presence of a specific publicity regime cannot entail any automaticity regarding the online dissemination of personal data and information, nor a derogation from the principles concerning the protection of personal data, as confirmed by the personal data protection system contained in the Regulation, according to which the data controller must implement "appropriate technical and organizational measures to ensure that, by default, only personal data necessary for each specific purpose of the processing are processed" and must be "able to demonstrate" – in light of the principle of "accountability" – that they have done so (arts. 5, par. 2; 24 and 25, par. 2, Regulation). For example, in numerous decisions regarding the obligations arising from art. 124 of Legislative Decree 267/2000, the Guarantor has reiterated that all limits provided by the principles of personal data protection also apply to publications on the online register of acts or resolutions, primarily considering the prior verification of the existence of suitable legal grounds for the online dissemination of the personal data contained therein (see, among many, provision of September 15, 2022, no. 299, web doc. no. 9815665, and provision of February 25, 2021, no. 68, web doc. no. 9567429).

Regarding the publication of the personal data of participants in selections for the assignment of horizontal economic progressions, it should be noted that the National Anti-Corruption Authority (ANAC), concerning internal selection procedures that determine a level change within the same area or category, so-called horizontal progressions, as in the present case, has clarified that these are "meritocratic procedures connected to the evaluation of the individual contribution of the worker and not subject to the principle of public competition" (see ANAC Resolution no. 775 of November 10, 2021; paragraph 1-bis of art. 52 of Legislative Decree 165/2001) and therefore not subject to the publication obligations exclusively provided for selection procedures aimed at hiring external personnel or those consisting of placement in a higher area (so-called vertical progressions) that occur through comparative procedures, resulting in an objective novation of the employment relationship. This position has been taken into account by the Guarantor in decisions on individual cases (see, most recently, Guarantor provision no. 28 of January 26, 2023, web doc. no. 9865528).

Based on the considerations above, it must be concluded that the personal data of the 70 municipal employees relating to the compensation received due to individual productivity and the personal data of the 30 employees relating to the outcome of the horizontal economic progressions were disseminated on the institutional website of the Municipality in the absence of an appropriate legal basis, in violation of arts. 5 and 6 of the Regulation and art. 2-ter of the Code (in the text prior to the amendments made by Legislative Decree of October 8, 2021, no. 139).

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the veracity of which may be subject to accountability under art. 168 of the Code – do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to permit the archiving of the present procedure, as none of the cases provided for by art. 11 of the Guarantor's Regulation no. 1/2019 apply. Therefore, the preliminary

assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Municipality is noted for having disseminated, through online publication on its institutional website, the personal data of municipal employees relating to the compensation received due to individual productivity and relating to the outcome of the horizontal economic progressions, in the absence of an appropriate legal basis, in violation of arts. 5, par. 1, lett. a) and c) and 6, pars. 1, lett. c) and e) and 2 and 3, lett. b) of the Regulation and of art. 2-ter, paragraphs 1 and 3 of the Code (in the text prior to the amendments made by Legislative Decree of October 8, 2021, no. 139).

The violation of the aforementioned provisions makes the administrative sanction provided for by art. 83, par. 5, of the Regulation applicable, pursuant to arts. 58, par. 2, lett. i), and 83, par. 3, of the same Regulation, as also recalled by art. 166, paragraph 2, of the Code.

In this context, considering, in any case, that the conduct has exhausted its effects, given that such acts have been published respectively for fifteen consecutive days on the institutional website of the Municipality and subsequently removed, the conditions for the adoption of further corrective measures referred to in art. 58, paragraph 2, of the Regulation do not apply.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, paragraph 2, letter i and 83 of the Regulation; art. 166, paragraph 7, of the Code).

The Guarantor, pursuant to arts. 58, paragraph 2, letter i) and 83 of the Regulation as well as art. 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to article 83, in addition to the [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in full or in extract, on the website of the Guarantor pursuant to article 166, paragraph 7, of the Code” (art. 16, paragraph 1, of the Regulation of the Guarantor no. 1/2019).

In this regard, taking into account art. 83, paragraph 3, of the Regulation, in the specific case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by art. 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by art. 83, paragraph 2, of the Regulation.

In relation to the aforementioned elements, the particular sensitivity of the personal data subject to online dissemination of numerous interested parties (dozens of municipal employees) concerning matters related to the employment relationship has been considered, particularly the personal data of municipal employees related to the compensation received due to individual productivity and those related to the outcome of horizontal economic progressions. It has also been considered the failure to comply with the indications that, for some time, the Guarantor has provided to all public entities since 2014 with the aforementioned Guidelines and in numerous measures on individual concrete cases adopted over the years by the Guarantor.

On the other hand, it has been taken into account that the violation was committed by a Municipality of modest size (approximately 8,000 inhabitants) and that it did not concern particular categories of personal data. The publication in the official register of the acts in question occurred for a short period of time and without any indexing on generalist sites. Finally, there are no previous relevant violations committed by the data controller or previous measures pursuant to art. 58 of the Regulation.

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at the sum of 3,000 euros (three thousand), for the violation of arts. 5, paragraph 1, letters a) and c) and 6, paragraphs 1, letters c) and e) and 2 and 3, letter b) of the Regulation and of art. 2-ter paragraphs 1 and 3 of the Code (in the text prior to the amendments made by the decree-law of October 8, 2021, no. 139), as an administrative pecuniary sanction deemed, pursuant to art. 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that the personal data, subject to online dissemination, concerned the outcomes of

evaluation procedures and the consequent legal and economic effects related to numerous municipal employees, it is also deemed that the accessory sanction of publication on the Guarantor's website of this provision, provided for by art. 166, paragraph 7 of the Code and art. 16 of the Regulation of the Guarantor no. 1/2019, should be applied.

Finally, it is noted that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE, THE GUARANTOR

declares, pursuant to art. 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Municipality of Aviano for violation of arts. 5 and 6 of the Regulation and 2-ter of the Code (in the text prior to the amendments made by the decree-law of October 8, 2021, no. 139), in the terms stated in the motivation;

ORDERS

The Municipality of Aviano, represented by the legal representative pro tempore, with registered office at Piazza Matteotti, 1 - 33081 Aviano (PN), Tax Code 0009032093, to pay the sum of 3,000 euros (three thousand) as an administrative pecuniary sanction for the violations indicated in the motivation. It is represented that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

ENJOINS

the aforementioned [...], in case of failure to settle the dispute pursuant to art. 166, paragraph 8, of the Code, to pay the sum of 3,000 (three thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with art. 27 of law no. 689/1981;

DISPOSES

pursuant to art. 166, paragraph 7, of the Code, the publication of this provision on the website of the Guarantor, considering that the conditions referred to in art. 17 of the Regulation of the Guarantor no. 1/2019 are met.

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, July 6, 2023

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Scorza

THE SECRETARY GENERAL

Mattei